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**INTELLECTUAL PROPERTY RIGHTS IN DEVELOPING
PRODUCTS NAMED AFTER PLACE NAMES OF BAC NINH
PROVINCE**

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SUMMARY OR DOCTORAL DISSERTATION

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LIST OF PUBLISHED RESEARCH WORKS OF THE AUTHOR RELATED TO THE THESIS

1. Nguyen Van Dong¹, Vu Quynh Nam² “Developing Products with Place Name Protected by Bac Ninh Province's Intellectual Property Rights”, INTI JOURNAL Vol.2024:03 ISSN:2600-

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2. PhD. Nguyen Van Dong, Dr. Vu Quynh Nam, Tran Thanh Tuan, “Examining The Variables That Influence Consumers' Intent to Purchase Goods With Intellectual Property Protected By Place Name: A Case Study Conducted In BAC Ninh Province, Vietnam”, [American Research Journal of Humanities & Social Science \(ARJHSS\)](#), E-ISSN: 2378-702X Volume-07, Issue-06, pp-33-39. <https://jsaer.com/download/vol-11-iss-3-2024/JSAER2024-11-3-211-218.pdf>

INTRODUCTION

1. Urgency of the topic

Intellectual property is one of the three pillars of modern international trade, playing an important role in Vietnam's international economic integration process, especially since Vietnam became an official member of the WTO and signed new generation Free Trade Agreements such as CPTPP, EVFTA,...

Bac Ninh is a province in the Red River Delta, adjacent to major economic centers, with a convenient transportation system, favored by nature, with favorable soil and climate conditions for the development of both industrial and agricultural production. Up to now, Bac Ninh province has 65 craft villages (including 31 traditional craft villages) and a number of specialty and key agricultural products of the province. In recent times, Bac Ninh has been promoting the establishment of intellectual property rights, management and promotion of brands for many products named after places, initially shaping the use of intellectual property tools to enhance the value and competitiveness of products, and orienting consumers to use quality-assured products.

However, like other localities in the country, in addition to the achieved results, the promotion of intellectual property rights in the development of products bearing the names of places in Bac Ninh province still has certain limitations. In the three important contents of intellectual property development, which are establishing, managing and exploiting intellectual property rights, localities are only focusing on establishing intellectual property rights for products bearing the names of places. Although the content of management and exploitation has been paid attention to and a system of management tools, brand identity, and other necessary tools have been built to serve the promotion and support of product development,... However, the efficiency of management, exploitation and use is not high, and the full value of intellectual property rights in developing products bearing place names has not been promoted; the connection between the subjects participating in the value chain of products named after places protected by intellectual property rights is still loose, from the subjects providing input factors and raw materials for production, the parties organizing production, to the

producers and the subjects implementing the development stage and bringing products into circulation on the market to consumers, there is still no close connection. Local policies, programs and plans to support the management and development of products named after places are not synchronous, many contents in management and development do not have specific policies for implementation and application, there are no solutions to perfect the policy, leading to the activities of the owner organization in the management and exploitation of the value of intellectual property rights in the market are not really effective. In addition, awareness of the role and importance of intellectual property rights and intellectual property tools to serve product development in the community as well as managers at all levels is still insufficient, significantly affecting the effectiveness of policy implementation, management and exploitation of intellectual property rights in developing products named after places.... From the above limitations, intellectual property rights have not really promoted their full value in developing products with place names, and have not met the expectations of producers as well as managers and localities. Therefore, specific solutions and policies are needed to remove difficulties and obstacles, overcome the above limitations, in order to promote and enhance the value and role of intellectual property rights in developing products named after places of the Province in the coming time.

From the above reality, the graduate student chose the topic "Intellectual property rights in developing products named after places in Bac Ninh province" as his doctoral thesis.

2. Objectives

2.1. General objectives

Research, evaluate the current situation and propose solutions to enhance the establishment, management and exploitation of intellectual property rights in developing products bearing the names of places in Bac Ninh province, contributing to enhancing product value and protecting the prestige and reputation of products bearing the names of places in Bac Ninh province.

2.2. Research Tasks

- Systematize and supplement the theoretical and practical basis on intellectual property rights in developing products named after geographical names.

- Analyze and evaluate the current situation and factors affecting the establishment, management and exploitation of intellectual property rights in developing products named after geographical names in Bac Ninh province.
- Propose some solutions to strengthen the establishment, management and exploitation of intellectual property rights in developing products named after geographical names in Bac Ninh province.

3. Research object and scope

3.1. Research object

The thesis focuses on studying theoretical and practical issues on intellectual property rights in developing products named after places in Bac Ninh province. Including issues related to establishing, managing and exploiting intellectual property.

3.2. Research scope

- In terms of content
- In terms of space
- In terms of time

4. New contributions of the thesis

- Theoretical contributions: The thesis has synthesized and unified a number of new concepts on: Products named after places; Intellectual property rights of products named after places; Intellectual property rights in the development of products named after places and the content of intellectual property rights in the development of products named after places.

The thesis has built a theoretical framework on intellectual property rights in the development of products named after places. From there, it has updated, supplemented and specified the theoretical basis for the analysis and evaluation of intellectual property rights in the development of products named after places.

The results of this scientifically-based research will supplement and contribute to enriching the theory on intellectual property rights in the development of products named after places.

- Practical contributions:

The thesis deeply studies the current status of establishing, managing and exploiting intellectual property rights in developing products named after places in Bac Ninh province. The thesis has approached from multiple perspectives from managers, brand

owners, production and business establishments and consumers of products named after places to accurately assess the current situation from the establishment, management and exploitation of intellectual property rights to the production and consumption process of products to consumers; Analyzing and evaluating consumers' feelings, tastes, needs and objective feedback about products bearing place names of Bac Ninh province, thereby analyzing and evaluating the advantages, shortcomings and causes of those problems, proposing specific solutions and recommending feasible policies to re-adjust the stages of management, exploitation and production and business activities, in order to promote the role of intellectual property rights in the development of products bearing place names of Bac Ninh province. Ninh.

The thesis applied the PLS-SEM linear structure model to analyze and evaluate factors affecting intellectual property rights in the development of products named after places based on consumers' assessments and feelings about products named after places in Bac Ninh province, through analyzing the multidimensional relationship between variables: product recognition, product association, perceived quality, product loyalty, local characteristics in the product; these are variables corresponding to the core factors affecting intellectual property rights in the development of products named after places, formed and absorbed in the process of establishing, managing and exploiting intellectual property rights of each product, creating the value of the product's brand assets, promoting intellectual property rights in the development of products named after places, especially the factor of local characteristics in the product.

The thesis is a useful reference document for managers in localities, agencies, units, academies, and training institutions to refer to in practical implementation, in management, in training and fostering issues related to intellectual property rights in developing products named after places.

5. Structure of the thesis

In addition to the introduction and conclusion, the thesis is structured into 5 chapters with the following main contents:

Chapter 1: Overview of research documents.

Chapter 2: Theoretical and practical basis of intellectual property rights in developing products named after geographical names.

Chapter 3: Research methods.

Chapter 4: Current status of intellectual property rights in developing products named after geographical names in Bac Ninh province.

Chapter 5: Solutions to promote intellectual property rights in developing products named after geographical names in Bac Ninh province.

Chapter 1

OVERVIEW OF RESEARCH LITERATURE

- 1.1. Overseas studies related to intellectual property rights;
- 1.2. Studies in Vietnam related to intellectual property rights;
- 1.3. Studies related to product development;
- 1.4. Research gap.

First, there are few studies on intellectual property rights in developing products named after places.

Second, one of the factors that has not been studied much in previous studies is the factor of local characteristics.

Third, there have not been many studies evaluating the factors affecting intellectual property rights in the development of products named after places.

Fourth, it can be said that there has not been a specific and comprehensive research project on products named after places as well as the development of products named after places in terms of the current status of intellectual property rights in the development of products named after places, factors affecting intellectual property rights in the development of products named after places in Bac Ninh province.

Chapter 2

THE THEORETICAL AND PRACTICAL BASIS OF INTELLECTUAL PROPERTY RIGHTS IN DEVELOPING PRODUCTS NAMED AFTER PLACES

2.1. Theoretical basis of intellectual property rights in developing products named after places

2.1.1. Intellectual property rights

Intellectual property rights are the rights of organizations and individuals recognized by law to intellectual property.

2.1.2. Concept of development

According to Bui Dinh Thanh (2015), development: “Development is an evolutionary process of every society and every ethnic community in which leaders and managers, through strategies and policies appropriate to the historical, political, economic, cultural and social characteristics of their society and ethnic community, create, mobilize and manage natural and human resources to achieve sustainable results and are fairly distributed to members of society for the purpose of constantly improving their quality of life”.

2.1.3. Products named after places

2.1.3.1. The concept of a product named after a place

According to the author, the concept of products bearing place names is as follows: Products bearing place names are products produced or exploited by the residential community in a geographical area (locality) according to a certain process and production and exploitation practices that create differences in product quality and characteristics.

2.1.3.2. Characteristics and roles of products named after places

a. Characteristics of products named after places

- Products with characteristics specific to the country, region, or locality

- Produced centrally in a community and highly homogeneous

- Products with competitive capacity in the market

- Products with strong influence

b. Role of products named after places

- Promote the development of forms of production and business organization

- Contribute to the economic restructuring, improve income and living standards for people.

- Developing products named after places will strongly develop production in rural areas, contributing to the industrialization and modernization of agriculture and rural areas.

2.1.4. Intellectual property rights in developing products named after places

2.1.4.1. Concept of intellectual property rights of products named after places

According to the author, intellectual property rights of products bear the names of places is a right recognized by law when granting a protection certificate for a product bearing a place name, including the right to use and the right to prohibit others from using it contrary to the owner's regulations.

2.1.4.2. Concept of intellectual property rights in developing products named after places

Intellectual property rights in developing products named after places are the establishment, management and exploitation of intellectual property rights of products named after places, using intellectual property tools to protect reputation and enhance competitiveness, commercial value, enhance the reputation of products on the market, contribute to promoting the local economy and preserving traditional cultural values.

2.1.4.3. Characteristics and role of intellectual property rights in developing products named after places

2.1.5. Research content on intellectual property rights in developing products named after places

2.1.5.1. Establishing intellectual property rights for products named after places

2.1.5.2. Managing intellectual property rights for products named after places

2.1.5.3. Exploiting intellectual property rights for products named after places

2.1.5.4. Increasing income for establishments/member households producing products named after places with protected intellectual property rights.

2.1.6. Factors affecting intellectual property rights in developing products named after places

2.1.6.1. Institutional and policy factors

2.1.6.2. Capacity of the organization owning intellectual property rights for products named after places

2.1.6.3. Input factors

2.1.6.4. Market factors

2.2. Practical basis of intellectual property rights in developing products named after places

2.2.1. Experience of some countries in the world

2.2.1.1. Experience of Japan

2.2.1.2. Experience of France

2.2.1.3. Experience of Korea

2.2.2. Experience in promoting intellectual property rights in developing products named after places in Vietnam

2.2.2.1. Experience of Hanoi city

2.2.2.2. Experience of Thai Nguyen province

2.2.2.3. Summary of experience in establishing, managing and exploiting intellectual property rights in developing products named after places in Vietnam

2.2.3. Lessons learned for Bac Ninh

First, it is necessary to develop policies to support the protection of intellectual property rights for local specialty products, and develop a strategy to brand local products based on local internal resources.

Second, build a synchronous state management system for the management of OCOP products protected by intellectual property rights, improve the effectiveness of self-management and internal management for organizations granted intellectual property rights.

Third, promote the role of collective organizations in developing OCOP products protected by intellectual property rights (prioritizing the form of Cooperatives and small and medium enterprises), which are the units that monitor compliance with regulations on product quality.

Fourth, there should be specialized departments for each locality on intellectual property to improve the effectiveness of management and support for entities/members who have registered OCOP products with local intellectual property rights protection.

Fifth, there should be a policy to prioritize the use of protected OCOP products for consumers and support traceability of products.

Sixth, support bringing OCOP products to points of sale and supermarkets, large markets, through international markets and through social platforms.

Seventh, link product consumption and develop local tourism

Eighth, there are specific regulations on fining violations of intellectual property rights.

Ninth, propagate to raise awareness among producers, traders and consumers about the role and benefits of OCOP products and intellectual property rights for OCOP products.

Tenth, link the OCOP program with the intellectual property program for developing locally protected OCOP products.

Chapter 3

RESEARCH METHODOLOGY

3.1. Research questions

1. What are the theoretical bases and practical experiences in studying intellectual property rights in developing products named after geographical names?

2. How has the process of establishing, managing and exploiting intellectual property rights in developing products named after geographical names in Bac Ninh province been in recent times?

3. What factors affect intellectual property rights in developing products named after geographical names in Bac Ninh province?

4. To promote the role of intellectual property rights in developing products named after places in Bac Ninh province, what key solutions are needed?

3.2. Research Methodology

3.2.1. Method approach

3.2.1.1. Participatory Approach

3.2.1.2. Approach by Production and Business Organization

3.2.1.3. Product Value Chain Approach

3.2.2. Research Design, Research Model and Research Hypothesis

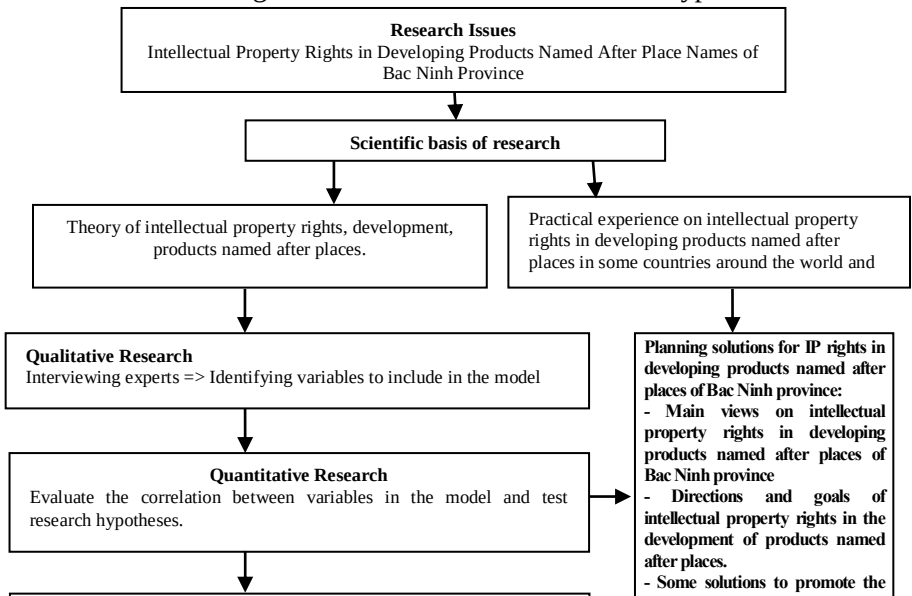
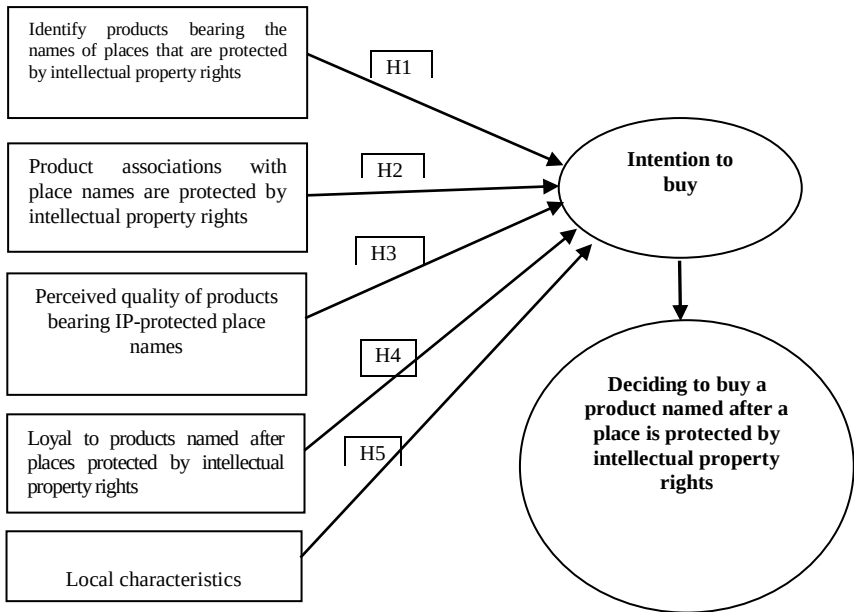


Figure 3.1. Research design**Figure 3.2. Proposing a model of factors affecting the decision to purchase products bearing IP-protected place names****3.2.3. Data collection method***3.2.3.1. Secondary data collection method**3.2.3.2. Primary data collection method**3.2.3.3. Expert method***3.2.4. Building a scale to study factors affecting the decision to purchase products named after places protected by intellectual property rights****3.2.5. Data synthesis and analysis method***3.2.5.1. Data synthesis method**3.2.5.2. Data analysis method***3.3. Research indicator system****3.3.1. Group of indicators reflecting the current status of products named after places protected by intellectual property rights**

3.3.2. Group of indicators reflecting the content of intellectual property rights in the development of products named after places in Bac Ninh province

3.3.2.1. System of indicators reflecting the establishment of intellectual property rights for products named after places

3.3.2.2. System of indicators reflecting the management of intellectual property rights for products named after places

3.3.2.3. System of indicators reflecting the exploitation of intellectual property rights for products named after places

3.3.2.4. System of indicators reflecting the results of production and business of products named after places with intellectual property rights protected

Chapter 4

CURRENT STATUS OF DEVELOPMENT OF PRODUCTS NAMED AFTER PLACE NAMES PROTECTED BY INTELLECTUAL PROPERTY RIGHTS OF BAC NINH PROVINCE

4.1. General overview of Bac Ninh province

4.1.1. Geographical location

4.1.2. Natural conditions

4.1.3. History - culture

4.1.4. Economic and social characteristics

4.2. Products named after places in Bac Ninh province

4.2.1. Craft village products named after places

As well as traditional Vietnamese crafts, handicrafts in Bac Ninh were formed quite early and in many places have developed into craft villages, passed down from generation to generation. Bac Ninh was once considered the land of "hundreds of crafts", many craft villages in Bac Ninh have existed for hundreds of years, such as: Da Hoi blacksmith village, Dong Ky, Phu Khe, Huong Mac handicraft wooden products, Tuong Giang weaving, Van Mon aluminum casting, Dai Bai bronze casting, Phong Khe do paper, Phu Lang pottery, Dong Ho folk paintings, Vong Nguyet silk,... and are widely distributed throughout the province; in addition, Bac Ninh's craft villages are prominent in two groups of cuisine and handicrafts such as:

- Culinary group: craft villages producing Banh te lang Cho, Banh cuc Cho, Banh dal nem Yen Phu, Banh dal semolina Tam Giang, Ruou Dai Lam (in Yen Phong district); Dau tra Lam, Tuong Dinh To, Nem Bui (in Thuan Thanh district); Dau tofu Huong Mac, Banh phu the Dinh Bang, Ruou nep Dinh Bang; Peanut candy and sesame candy Trang Ha, Gio cha Tan Hong, Nem chua Tan Hong, Bun Tan Hong, Ruou nep Dong Nguyen (in Tu Son town); Bun Khac Niem, Banh khoai Thi Cau, Banh ngu vi Thi Cau, Banh khuc lang Diem (in Bac Ninh city).

- Group of handicraft products: O Cach wooden clock case, Trung Nghia European-style table and chair with box arm (in Yen Phong district); Dao Vien bronze casting, Binh Cau fine art wood (in Thuan Thanh district); Huong Mac fine art, Tuong Giang weaving, Phu Khe fine art, Trang Ha fine art wooden furniture, Chau Khe iron and steel, Dong Ky fine art (in Tu Son town); Phuc Xuyen wooden furniture, Phuc Xuyen wooden mosaic, Khe paper (in Bac Ninh city). The production and business activities of the lottery establishments by rural occupations in Bac Ninh province in 2022 are as follows: The production value of the rural occupations in Bac Ninh province in 2022 has strong growth compared to 2020 and 2021, because in 2022, occupations began to recover after the Covid-19 pandemic. The production value of 6 industrial groups of Bac Ninh in the period of 2020-2022 will grow from 9.27-17.72%/year, the indicators of total number of employees, total number of production establishments and average income of employees/year all grow strongly.

4.2.2. Agricultural products named after places

According to the synthesis and survey data in 2022, the province currently has 20 key agricultural products and specialties named after places (including 9 traditional products and 11 newly developed products from specialized cultivation areas). Of these, 8 products have been granted intellectual property protection certificates, accounting for 36.84% of the province's key agricultural products and specialties.

4.3. Intellectual property rights in the development of products named after places in Bac Ninh province

4.3.1. Current status of establishing intellectual property rights for products bearing place names

4.3.1.1. Results of establishing intellectual property rights for products bearing place names

Through statistical data, there are 10 products with place names that are protected by IP rights under the NHCN form, including: Tuong Dinh To, Dau Tra Lam, Nem Bui (Thuan Thanh Town); Banh Phu The Dinh Bang, Gao nep nhung Tam Son (Tu Son City); Banh te lang Cho, Nep cai hoa vang Yen Phu, Banh da nem Yen Phu (Yen Phong District); Carrot Gia Binh (Gia Binh District) and Gao phem Que Vo (Que Vo Town); there are 10 products protected by intellectual property rights under the form of NHTT including: Dong Ky fine art wooden products (Tu Son City); Gom Phu Lang, Khoai khoai (Que Vo District); Dong Dai Bai, Tre truc Xuan Lai (Gia Binh District); Ga Ho, Ga cao Binh Cau fine art wooden products, Clean fish of Truong Manh Cooperative (Thuan Thanh District); Bamboo and rattan weaving Xuan Hoi (Tien Du District). In particular, An Thinh Garlic, Luong Tai district is the first product of Bac Ninh province to be protected by geographical indications.

4.3.1.2. Using place names to protect products

All products protected under the form of geographical indications, NHCN, NHTT of the province are associated with place names (indicating geographical origin), including: names of provinces, districts, communes and other place names, of which 01 product uses the name of the Country (NHTT Gom Phu Lang Vietnam), 09 products use the name of the province (Bac Ninh), 15 products use the name of the district/town, 14 products use the name of the commune/ward/town, 03 products use the name of the village (associated with the name of the craft village).

4.3.1.3. Owners of intellectual property rights of products bearing place names

According to statistics from the Intellectual Property Office in 2021, the number of intellectual property rights owned by socio-political organizations accounts for only 34% (while in Bac Ninh this rate is 56%), 16% of intellectual property rights nationwide are owned by professional associations (in Bac Ninh it is 22%), the remaining intellectual property rights (accounting for 40%) nationwide are owned by cooperatives (the corresponding rate in Bac Ninh is 22%). Thus, compared to the general statistics of the whole

country on intellectual property rights owners, Bac Ninh province is different, while the whole country has the largest number of cooperatives (40%) as owners of intellectual property rights, Bac Ninh has more than half of the intellectual property rights owned by the Farmers' Association (56% of the protected intellectual property rights).

4.3.2. Current status of IP rights management for products bearing the name of a place in Bac Ninh province

4.3.2.1. IP rights management model for products bearing the name of a place in Bac Ninh province

Regarding the management organization model:

According to the author's survey results, currently, owners face many difficulties in the process of operating IP rights management models for products bearing the name of a place, although the owners have built and issued a system of tools to serve the management work, the difficulties that owners often encounter are: currently, Bac Ninh does not have specific policies in guiding and providing specific support in the management of IP rights of products bearing the name of a place after being protected, especially policies on financial mechanisms, human resource training,...;

4.3.2.2. Product IP rights management tool system named after Bac Ninh province

Through the assessment results, it is shown that currently the owners of products bearing geographical names in Bac Ninh province have built and issued a system of documents and tools to serve the management and use of intellectual property rights for products that are relatively complete, clear, and have enough legal and practical basis to improve the operational efficiency of management models and promote the value of intellectual property rights of products after being protected. However, the system of management organization models needs to be adjusted to be more suitable (52.79%) and the system of monitoring and recording forms (28.43%). This is one of the contents that needs to be researched and adjusted for the locality after the products bearing geographical names have been protected.

4.3.2.3 Activities of granting certificates and using intellectual property rights of products bearing place names

According to survey results for establishments/members that have granted the right to use common trademarks, 94% of members

said they use the promulgated labeling system, 55% of members use product packaging system, 26% of members use brand identification system at the office, 5% of members use product promotion and communication system, 10% of members have other opinions (these members said they only use some The content of the brand identity system has been issued by the owner). Thus, it can be seen that although products bearing geographical names after being protected have all built and issued a brand identity system to apply to all members/establishments. However, members who are granted usage rights have not fully complied with the promulgated brand identity system.

4.3.2.4. Intellectual property rights control activities for products named after places

It can be seen that at establishments granted certificates of intellectual property rights, products named after places are most frequently controlled by the community, because products named after places are intellectual property, traditions, symbols, prestige, and reputation of an entire community. Production establishments granted certificates of rights to use are excellent and typical production establishments selected by the community and at the same time meet all the criteria according to regulations, so in the community there is always self-control and cross-checking in all activities of production and business establishments, to ensure compliance with the culture, quality, traditions, and conventions of that community.

4.3.2.5. Developing promotional activities for products named after protected places

According to the survey results, products bearing the province's place names after being protected are introduced and promoted on mass media such as the Provincial Radio and Television Station, local radio and television stations, printed newspapers, electronic newspapers, etc. Promotion is carried out through articles introducing products and craft villages. Product introduction is carried out through fairs and exhibitions inside and outside the province. For each protected product, a video introduction system and a promotional website system are built. Promoting the expansion of the distribution system, cooperating with supermarkets and convenience

stores to bring products closer to consumers through stores displaying and selling products right in the locality.

4.3.3. Current status of exploitation of intellectual property rights of products bearing place names

Through investigation and survey, it is shown that some products after being initially protected have created advantages in the production and business activities of organizations and individuals such as increased prices, expanded markets and created trust among consumers. This is the basis for continuing to develop products named after the province's place names to improve production and business efficiency, and develop commodity production. At the same time, it is an extremely important activity in preserving and promoting the traditional values of each locality's products, promoting the fight against commercial fraud, raising consumer awareness, increasing product competitiveness, helping to promote the development potential of local resources, and improving community life.

4.3.4. Current income status of establishments producing products named after places protected by intellectual property rights in Bac Ninh province

Through surveys, evaluations and synthesis of opinions of production households and trademark owners, it is shown that the income of production households that are granted the right to use the trademark of products bearing the name of a protected place has a stable market, better quality, higher selling price than similar products of other households, the consumption market is constantly expanding,... these are important factors that help the income of production households in particular, and laborers producing products bearing the name of a place in general, achieve stability and growth in recent years.

4.4. Factors affecting intellectual property rights in developing products named after geographical names in Bac Ninh province

4.4.1. Impact from institutional and policy factors

4.4.2. Capacity of the organization owning intellectual property rights of products named after geographical names

4.4.3. Input factors for developing production and business of products named after geographical names protected by intellectual property rights

4.4.3.1. Human resource factors

4.4.3.2. Application of scientific and technological advances in the production of products named after geographical names

4.4.3.3. Investment capital for production and business of products named after geographical names protected by intellectual property rights

4.4.4. Market demand for products named after geographical names protected by intellectual property rights

4.5. General assessment of intellectual property rights in developing products named after geographical names in Bac Ninh province

4.5.1. Results achieved

4.5.1.1. Improving the management of intellectual property rights in developing products named after places in Bac Ninh province

Firstly, Bac Ninh is a province with developed craft village products, with 65 craft villages. Of which, there are 17,722 production establishments, with a production value of 15,171 billion VND. The whole province has 21 specialty agricultural products, key products bearing the name of Bac Ninh province protected (in 2022) including: 01 geographical indication; 10 collective trademarks; 10 certification trademarks. Secondly, the protected products are all associated with place names including: the name of the province, district, commune and other place names, including 01 product using the National name (NHTT Gom Phu Lang Vietnam), 09 products using the name of the province (Bac Ninh), 15 products using the name of the district/town, 14 products using the name of the commune/ward/town, 03 products using the name of the village (associated with the name of the craft village). This confirms the correctness of the province's policies and guidelines in developing key products and craft village products of the province.

Third, the selected trademark owners all meet the provisions of the State law on IP and are relatively diverse, including: 10 products protected by IP rights in the form of NHCN, of which 05 products are registered by the organization named NHCN, which is the People's Committee of the district/town, city; 04 products are owned by the People's Committee of the commune; 01 product is owned by the District Economic and Infrastructure Department; 01 protected

geographical indication is An Thinh Luong Tai Bac Ninh Garlic, represented by the People's Committee of Luong Tai district.

Fourth, the model and system of tools for managing IP rights of products named after the place name of Bac Ninh province are quite diverse according to the management and usage needs of each protected product.

Fifth, the number of households granted intellectual property rights for products bearing geographical names has increased over the years, especially for products that have been protected for a long time, the number of households/organizations registering to participate has increased, such as the Dong Ky Fine Arts Woodwork brand increased from 20 households granted certificates for the first time, to 150 households granted rights by the end of 2022.

Sixth, activities to control intellectual property rights of products bearing geographical names have received more attention and many policies and management regulations have been issued and effectively implemented through the control of the producers themselves and the drastic participation of local authorities. Seventh, activities to promote products bearing geographical names with protected intellectual property rights have also received attention and support from the locality.

Eighth, the income of households/facilities producing products bearing the name of a geographical name protected by intellectual property rights of Bac Ninh province has increased over the years, the average growth rate of income of surveyed households in the period 2020-2022 increased by 30.84% for the group of industries processing and preserving agricultural, forestry and fishery products; The group of industries producing wooden products, rattan and bamboo, ceramics, glass, textiles, yarn, embroidery, knitting, and small mechanics increased by 39.73%.

4.5.1.2. Promoting the role of intellectual property rights in developing products named after places of Bac Ninh province

The use of intellectual property rights as a tool for developing products bearing geographical names has contributed to increasing product value, selling price and production scale, increasing the number of jobs, contributing to stabilizing and enhancing economic value for local people.

4.5.2. Restrictions on developing products named after places protected by intellectual property rights of Bac Ninh province

4.5.2.1. The work of establishing intellectual property rights for products named after geographical names is not commensurate with the available potential

There is no plan to select products for protection

Policies to support the establishment of intellectual property rights for products bearing place names mainly depend on science and technology policies without the coordination of support policies from the central, local levels and from community resources for establishing intellectual property rights for products bearing place names. Currently, Bac Ninh has not implemented the registration of protection for products bearing geographical names abroad.

4.5.2.2. Regarding the management and exploitation of intellectual property rights of products bearing place names

Currently, granting use rights is mainly done during the implementation of IP support programs and projects; a few are carried out after the programs and projects have ended. The granting of usage rights to organizations and individuals producing and trading products has not achieved the desired results.

Many collective organizations are still confused and not proactive in managing and exploiting IP rights, they only play a coordinating role but are not really the subjects in management and development.

IP rights management models after being established are not very effective; especially the inspection and supervision of the production process, quality standards, the use of labels and packaging are still very limited and have not achieved high efficiency.

4.5.2.3. Promotion and market development for products named after places

The ability to recognize products bearing place names is still relatively vague: The number of members using a common brand identity system is still limited; members mainly use the brand identity system for stamps and labels, a few use the packaging system, very few members fully comply with the brand identity system that has been built and issued by the owner; therefore, the impression of the ability to recognize products bearing place names of Bac Ninh province is not high.

Communication and promotion activities mainly take place during the implementation of state programs and projects to support intellectual property; there is a lack of initiative from organizations and individuals in the process of using protected intellectual property rights.

Lack of trade promotion activities, market development, and value chain linkage: Currently, Bac Ninh province does not have specific and regular policies on supporting products with geographical names after being protected such as: trade promotion, market connection and development, especially production - business linkage models according to value chains.

4.5.3. Causes of limitations

First, the number of products named after Bac Ninh province is relatively large, besides, the protection, management and development of intellectual property rights consumes a lot of resources and costs, takes a long time to implement, and is highly specialized. Therefore, it requires the participation of management agencies from the province to the locality and the participation of specialized agencies and consulting units.

Second, the awareness of the subjects producing and trading products named after geographical names protected by intellectual property rights and the state management agencies on intellectual property is not high, leading to the participation and management of protected products not being really effective.

Third, there is a lack of resources and support policies in operating management models.

Fourth, funding sources have not been allocated for the management and exploitation of intellectual property rights after being protected.

Fifth, new support programs and projects mainly focus on the protection, management and promotion of brands; there are no support programs specifically for products bearing geographical names after protection, with strong participation from relevant departments and agencies of the province and localities; especially synchronous, large-scale and periodic trade promotion and promotion programs.

Sixth, the management model and management tools for products bearing geographical names protected by IP rights are not

yet synchronous, each product has its own model and management tools, leading to difficulties in the management and supervision of authorities at all levels.

Seventh, the control of brands and packaging labels is not really effective because many households are not aware of the role of intellectual property protection, so they do not use product packaging and labels and do not comply with the criteria or production processes of protected products.

Eighth, the factors affecting the decision to purchase products named after geographical names protected by IP rights in Bac Ninh province also greatly affect the development of products named after geographical names, including: customer perception of the product; local characteristics; product brand; brand recognition and customer loyalty to the product brand. Therefore, it is necessary to have a synchronous solution to promote customer consumption of products named after geographical names protected by Bac Ninh province. Ninth, the income of production and business households affects the investment in developing products named after geographical names protected by IP rights, such as: the education level of the household head, the number of household employees, the number of years of experience of the household in product production; Household investment capital and household investment costs for production and business... from which it is necessary to have solutions to increase household income by supporting input materials for production, supporting the market, supporting capital for households in production and business of products named after geographical names protected by intellectual property rights of Bac Ninh province.

Chapter 5

SOLUTIONS TO PROMOTE INTELLECTUAL PROPERTY RIGHTS IN DEVELOPING PRODUCTS NAMED AFTER PLACE NAMES OF BAC NINH PROVINCE

5.1. Viewpoints on promoting intellectual property rights in developing products named after places in Bac Ninh province

5.2. Orientation and goals on promoting intellectual property rights in developing products named after places in Bac Ninh province by 2030

5.3. Solutions to promote intellectual property rights in developing products named after places in Bac Ninh province

5.3.1. Promoting the establishment of intellectual property rights for products named after places

- First, choose products to protect
- Second, choose the form of protection
- Third, policies to support the establishment of intellectual property rights for products bearing protected place names
- Fourth, about choosing management subjects
- Fifth, select the product's protection criteria:
- Sixth, stipulate requirements on technical processes and production methods

5.3.2. *Strengthen the management of intellectual property rights for products named after places*

- Firstly, build a system of uniform management documents
- Second, select and build an appropriate management model
- Third, improve the capacity of brand management subjects
- Fourth, strengthen policy support for management models:
- Fifth, promote coordination between sectors:
- Sixth, strengthen control of intellectual property rights of products bearing place names.
- Seven is to promote and develop the consumption market for products bearing geographical names after being protected

5.3.3. *Promoting the exploitation of intellectual property rights of products named after places*

- Strengthening linkages between sectors to maximize the exploitation of intellectual property rights. The agriculture, industry and trade, tourism and culture sectors need to coordinate closely to develop the value chain of place-name products. For example, integrating products bearing geographical names into tourism programs and promoting local culture not only enhances the value of products but also creates a connection between tradition and modernity.

- Capacity building for businesses is also an important solution. Production units need to be guided on how to effectively exploit intellectual property rights, from branding, packaging, to product distribution. Organizing training and consulting programs on

intellectual property law will help businesses better understand how to take advantage of these rights to develop their business.

- Promoting promotion and marketing is also a necessary solution to fully exploit IP rights. Products named after places need to be promoted not only through traditional channels but also through online platforms such as social networks and e-commerce platforms. Taking advantage of technology to reach domestic and foreign customers will expand the market for products, while enhancing brand value.

- Promoting international cooperation in exploiting IP rights also needs to be promoted. Registering for IP protection abroad and cooperating with international partners will help products bearing place names reach the world, increase export value and enhance local reputation.

- Strengthen the application of e-commerce in the production and business process of products bearing geographical names in general, in the management of products bearing protected geographical names, for example using the growing area code.

5.3.4. Increase income for establishments that produce products bearing the names of places protected by intellectual property rights

Increasing income for establishments producing products named after geographical names protected by intellectual property rights (IP) in Bac Ninh needs to start with developing brands and increasing product value.

Building linked export products and sustainable value chains.

Local authorities play an important role in supporting economic development for these production establishments. There should be policies to support capital, tax and legal advice, along with organizing training programs to raise awareness of IP rights.

In addition, to increase income for establishments producing products named after geographical names protected by intellectual property rights, it is necessary to support households producing products named after geographical names protected by intellectual property rights - this is the difference compared to households whose products have not been granted IP rights, in order to create capital to expand production and business; Support the output market of products bearing protected geographical names through supporting booths, stalls, supporting

website construction, participating in e-commerce platforms at low costs... At the same time, improve production capacity and awareness of production and business households on food safety and product standards according to regulations to meet market and consumer requirements.

5.3.5. Other solutions

5.3.5.1. Solution on increasing resources

5.3.5.2. Raising awareness on protection and management of intellectual property rights of products named after places

5.3.5.3. Mobilizing capital to develop products named after places with intellectual property rights protection

5.3.5.4. Promoting the application of scientific and technological advances in the production, harvesting, preservation and consumption of products named after places with intellectual property rights protection

CONCLUSION

In this thesis, the theoretical basis focuses on the main content of intellectual property rights in the development of products named after places, including 4 basic contents: Establishing intellectual property rights for products named after places; Managing intellectual property rights of products named after places; Exploiting intellectual property rights of products named after places; Increasing income for establishments and member households producing products named after places with intellectual property rights protection. This is the theoretical basis for analyzing the current status of intellectual property rights in the development of products named after places in Bac Ninh province. Besides, the thesis not only lists but also analyzes in depth the factors affecting intellectual property rights in the development of products bearing geographical names, thereby proposing corresponding research models. Through assessing the current status of intellectual property rights in the development of products bearing geographical names in Bac Ninh province, the number of surveyed households shows that the protected products are all associated with geographical names including: the name of the province, district, commune and other geographical names. The selected trademark owners all meet the provisions of the State law on intellectual property and are relatively

diverse. The model and system of tools for managing intellectual property rights of products named after places in Bac Ninh province meet the management and use needs of each protected product. Activities of controlling intellectual property rights and promoting products with place names have received more attention and many policies and management regulations have been issued and implemented effectively through the control of the producers themselves and the drastic involvement of local authorities. Income of households/facilities producing products named after geographical names protected by IP rights of Bac Ninh province has increased over the years. However, the promotion of intellectual property rights in the development of products named after geographical names in Bac Ninh province still has some limitations in terms of the protection of IP rights of products named after geographical names that are not commensurate with the available potential; the management and exploitation of IP rights of products named after geographical names and the promotion and market development of products named after geographical names still have certain limitations. Based on the above situation, the thesis proposes 4 solutions for 4 research contents and 4 other solutions to promote and develop intellectual property rights in the development of products named after places in Bac Ninh province: Solutions to promote the establishment of intellectual property rights for products named after places; Solutions to strengthen the management of intellectual property rights for products named after places; Solutions to promote the exploitation of intellectual property rights for products named after places; Solutions to increase income for establishments producing products named after places with intellectual property rights protected; Some other solutions: solutions to increase resources; solutions to develop consumer markets for products named after places after they are protected; solutions to raise awareness about protection and management of intellectual property rights for products named after places; solutions to mobilize capital to develop products named after places with intellectual property rights protection; solutions to promote the application of scientific and technological advances in production, harvesting, preservation and consumption of products named after places with intellectual property rights protection.